

25NNCV06068 25NNCV06068

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-07-07

Motion: MOTION TO DEEM ADMITTED REQUESTS FOR ADMISSIONS (SET ONE); REQUEST FOR MONETARY SANCTIONS

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Case Number: 25NNCV06068 Hearing Date: July 7, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

MERI PETROSYAN,

Plaintiff(s),

vs.

DAVID
RODRIGUEZ,

Defendant(s).

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CASE NO.: 25NNCV06068

[TENTATIVE]

ORDER RE: MOTION TO DEEM ADMITTED REQUESTS FOR ADMISSIONS (SET ONE);
REQUEST FOR MONETARY SANCTIONS

Dept.

3

8:30

a.m.

July 7,

2026

On August 29,

2025, plaintiff Meri Petrosyan ("Plaintiff") filed this
action against defendant David Rodriguez ("Defendant") arising from a motor
vehicle accident. On March 17, 2026 Defendant
served Requests for Admissions (Set No. 1). After Plaintiff failed to serve
responses, Defendant filed this motion on May 1, 2026 for an order compelling
responses and imposing \$505 in sanctions upon Plaintiff and counsel of record,
Hyka H. Karapetian, Esq.

Where a party fails to timely respond

to a request for admission, the propounding party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted. (Code Civ. Proc., § 2033.280, subd. (b).) The court shall grant a motion to deem admitted requests for admissions, “unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (Code Civ. Proc., § 2033.280, subd. (c).)

Plaintiff

did not oppose the Motion and it is undisputed responses were not served. Moreover, it does not appear that substantially compliant responses have been served before the date of the hearing. Accordingly, Defendant's motion is GRANTED and the matters stated within Requests for Admissions (Set 1) are deemed admitted.

Where a party fails to provide a timely

response to requests for admission, “[i]t is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (Code Civ. Proc., § 2033.280, subd. (c).)

Therefore, Defendant's

request for monetary sanctions is GRANTED and imposed against Plaintiff and counsel of record, jointly and severally, in the reduced amount of \$198.75, consisting of 1 hour at defense counsel's paralegal's hourly rate of \$95, 0.25 hours at defense counsel's hourly rate of \$175, and \$60 in filing fees, to be paid within 20 days of the date of this Order.

Moving party to give notice.

Dated

this 7th

day of July 2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.